

1 ENGROSSED SENATE AMENDMENT
TO
2 ENGROSSED HOUSE
BILL NO. 1381

By: Dempsey of the House

and

Daniels of the Senate

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7 An Act relating to alcoholic beverages; amending 37A
8 O.S. 2021, Section 1-107, which relates to the powers
and duties of the Oklahoma Alcoholic Beverage Laws
9 Enforcement Commission; requiring an annual report be
report be made available online; and providing an
10 effective date.

11
12 AUTHOR: Remove as principal House author Dempsey and substitute as
principal House author Moore

13
14 AUTHOR: Remove as principal Senate author Daniels and substitute as
principal Senate author Murdock. Retain Daniels as Senate
15 coauthor

16 AMENDMENT NO. 1. Page 1, strike the title, enacting clause and
entire bill and insert

17
18 "An Act relating to alcoholic beverages; amending 37A
19 O.S. 2021, Section 2-110, as last amended by Section
20 1, Chapter 417, O.S.L. 2024 (37A O.S. Supp. 2025,
Section 2-110), which relates to mixed beverage
21 license; allowing certain licensee to provide certain
complimentary tasting; establishing certain
22 requirements for certain complimentary tasting;
amending 37A O.S. 2021, Section 3-108, which relates
23 to licensed distributor agreement required for
licensed brewers or cider manufacturers; prohibiting
24 certain licensee from requiring certain distributor
to accept certain delivery; allowing certain licensed
distributor to refuse certain delivery; amending 37A

1 O.S. 2021, Section 3-116, as amended by Section 1,
2 Chapter 238, O.S.L. 2023 (37A O.S. Supp. 2025,
3 Section 3-116), which relates to sale of alcoholic
4 beverages made in foreign country; prohibiting
5 certain licensee from requiring certain wholesaler to
6 purchase certain goods as certain condition of
entitlement; prohibiting certain licensee from
requiring certain wholesaler to accept certain
delivery; allowing certain wholesaler to refuse
certain delivery; updating statutory language; and
providing an effective date.

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8 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

9 SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-110, as
10 last amended by Section 1, Chapter 417, O.S.L. 2024 (37A O.S. Supp.
11 2025, Section 2-110), is amended to read as follows:

12 Section 2-110. A. A mixed beverage license shall authorize the
13 holder ~~thereof~~ to:

14 1. ~~To purchase~~ Purchase alcohol, spirits, beer ~~and/or,~~ or wine
15 in retail containers from the holder of a wine and spirits
16 wholesaler and beer distributor license as specifically provided by
17 law;

18 2. ~~To sell~~ Sell, offer for sale, and possess mixed beverages
19 for on-premises consumption only, provided:

20 a. the holder of a mixed beverage license issued for an
21 establishment which is also a restaurant may purchase
22 wine directly from a winemaker and beer directly from
23 a small brewer who is permitted and has elected to
24

1 self-distribute as provided in Article XXVIII-A of the
2 Oklahoma Constitution, and

- 3 b. the holder of a mixed beverage license that is also a
4 holder of a retail wine license or retail beer license
5 or both a retail wine license and retail beer license
6 shall not be prohibited from the on-premises sale of
7 wine or beer, according to the license held, for off-
8 premises consumption, subject to the limitations of
9 the retail wine license or retail beer license; ~~and~~

10 3. ~~To sell~~ Sell spirits in their original packages for
11 consumption on its premises under the following conditions:

- 12 a. spirits in their original packages shall remain and be
13 consumed in the club suite of a mixed beverage
14 licensee and may not be removed from the club suite if
15 not consumed in their entirety at or before the
16 conclusion of the period for which the club suite was
17 made available to a specific patron or patrons by the
18 mixed beverage licensee, and
- 19 b. spirits in their original packages to be consumed in
20 the club suite are provided exclusively by the mixed
21 beverage licensee; and

22 4. Provide, free of charge for on-premises consumption only, no
23 more than one alcoholic beverage containing one and one-half (1 1/2)
24 ounces of spirits, six (6) ounces of wine, or twelve (12) ounces of

1 beer per day for a complimentary tasting to a guest or customer who
2 is twenty-one (21) years of age or older.

3 B. Sales and service of mixed beverages by holders of mixed
4 beverage licenses shall be limited to the licensed premises of the
5 licensee unless the holder of the mixed beverage license also
6 obtains a caterer license or a mixed beverage/caterer combination
7 license, or if the holder of a mixed beverage license is an
8 Entertainment District Tenant Party as defined in Section 2393 of
9 Title 68 of the Oklahoma Statutes. A mixed beverage license shall
10 only be issued in counties of this state where the sale of alcoholic
11 beverages by the individual drink for on-premises consumption has
12 been authorized. A separate license shall be required for each
13 place of business.

14 C. Sales and service of mixed beverages by holders of mixed
15 beverage licenses of an Entertainment District Tenant Party shall be
16 limited to the premises of an Entertainment District. For purposes
17 of this subsection, premises may be defined as the designated area
18 of an Entertainment District as defined in Section 2393 of Title 68
19 of the Oklahoma Statutes.

20 D. Holders of a mixed beverage license shall not be prohibited
21 from obtaining and holding a retail beer license or retail wine
22 license or both a retail beer license and retail wine license;
23 provided, that each holder qualifies and maintains the
24 qualifications for each license held as set forth in this title and

1 the rules promulgated by the Alcoholic Beverage Laws Enforcement
2 ~~(ABLE)~~ Commission.

3 E. Upon application, a mixed beverage license shall be issued
4 for any place of business functioning as a motion picture theater,
5 as defined by Section 1-103 of this title. Provided, that upon
6 proof of legal age to consume alcohol, every patron being served
7 alcoholic beverages shall be required to wear a wrist bracelet or
8 receive a hand stamp identifying the patron as being of legal age to
9 consume alcohol. This requirement shall only apply inside a motion
10 picture theater auditorium where individuals under the legal age to
11 consume alcohol are allowed.

12 F. Holders of a mixed beverage license with a licensed premises
13 on a business establishment that meets the classification of a golf
14 course or country club pursuant to the most recently adopted North
15 American Industry Classification System (NAICS) may also sell beer
16 in sealed original packages for on-premises consumption. Such
17 holders' sales of more than two sealed original packages to one
18 person at one time for on-premises consumption shall not be
19 considered an unlawful inducement to stimulate consumption of
20 alcoholic beverages under the Oklahoma Alcoholic Beverage Control
21 Act, and patrons may remove sealed original packages from the
22 licensed premises.

23 SECTION 2. AMENDATORY 37A O.S. 2021, Section 3-108, is
24 amended to read as follows:

1 Section 3-108. A. The provisions of this section shall be in
2 effect except as otherwise provided in Article XXVIII-A of the
3 Oklahoma Constitution.

4 B. Subject to the provisions of subsection D of this section,
5 every licensed brewer or cider manufacturer authorized to sell ~~its~~
6 such licensee's beer or cider in this state shall:

7 1. Enter into a distributor agreement with a licensed
8 distributor, ~~as defined herein,~~ to sell the designated brands,
9 including brand extensions, of the brewer or cider manufacturer.
10 The agreement shall designate the sales territory of that licensed
11 distributor and the designated brands to be sold by the licensed
12 distributor. All such distributor agreements shall specifically
13 authorize this sale of the designated brands by a licensed
14 distributor within that sales territory. All such distributor
15 agreements shall further provide that the licensed brewer or cider
16 manufacturer who desires to sell a brand extension of a low-point
17 beer in ~~Oklahoma must~~ this state shall assign the low-point beer
18 brand extension to the licensed distributor to whom the licensed
19 brewer or cider manufacturer granted the exclusive sales territory
20 to the low-point beer brand from which the brand extension resulted;

21 2. Sell ~~its~~ a brewer's or cider manufacturer's registered and
22 approved designated brands only to a licensed distributor with whom
23 that brewer or cider manufacturer has a distributor agreement
24

1 designating the sales territory of the licensed distributor and the
2 designated brands to be sold by the licensed distributor;

3 3. Authorize only one licensed distributor for each designated
4 sales territory. Such licensed distributor shall be the only
5 licensed distributor for the designated brands of the authorizing
6 brewer or cider manufacturer within that designated sales territory;
7 and

8 4. Designate who is responsible for the distribution of ~~its~~ a
9 brewer's or cider manufacturer's designated brands.

10 C. Subject to the provisions of subsection D of this section,
11 any and all licensed distributors possessing the rights to
12 distribute a low-point beer brand in a specific territory prior to
13 the introduction of that low-point beer's correlating beer brand
14 extension in that specific territory shall retain the right to
15 distribute the low-point beer from which the brand extension
16 resulted.

17 D. 1. No later than August 2, 2018, a brewer shall assign the
18 exclusive right to distribute a beer brand, including brand
19 extensions ~~thereof~~ of such beer brand, to the low-point beer
20 distributor who was, prior to October 1, 2018, assigned the
21 exclusive distribution rights to the low-point beer from which the
22 brand extension arose without charge or payment of compensation,
23 unless the low-point beer distributor is, on October 1, 2018, a
24 brewer of beer or low-point beer and has ~~therefore~~ been distributing

1 low-point beer pursuant to a license to so distribute, subject to
2 the provisions of subsection E of this section. This subsection
3 shall not apply to a small brewer as defined in Section 1-103 of
4 this title.

5 2. With respect to brand extensions ~~which~~ that arise after
6 October 1, 2018, the brewer or cider manufacturer shall assign the
7 exclusive right to distribute the brand extension to the distributor
8 who has been assigned the exclusive distribution rights to the beer
9 or cider from which the brand extension arose, without charge or
10 payment of compensation.

11 3. With respect to a brand of beer or cider which was, prior to
12 April 15, 2017, distributed in this state only as strong beer or
13 cider pursuant to the Oklahoma Alcoholic Beverage Control Act then
14 in effect, if a low-point version of the brand is introduced after
15 April 15, 2017, no later than August 2, 2018, the brewer or cider
16 manufacturer shall assign the exclusive rights to distribute the
17 low-point version of the brand to the distributor who was,
18 immediately prior to the introduction of the low-point version of
19 the brand, assigned the exclusive distribution rights to the strong
20 version of the brand without charge or payment of compensation.

21 4. No later than August 2, 2018, with respect to dual strength
22 beer, the brewer thereof shall assign the exclusive right to
23 distribute the brands represented by the dual strength beer to
24 either the low-point beer distributor or the nonresident seller who

1 had ~~theretofore~~ been assigned the exclusive distribution rights in
2 the territory to either version of the dual strength beer; provided,
3 however, whichever party is selected by the brewer ~~must~~ shall
4 compensate the party that was not selected by the brewer for the
5 loss of the distribution rights with respect to that particular
6 territory. Whichever party is selected shall obtain the requisite
7 distributor license and shall be subject to the provisions of the
8 Oklahoma Alcoholic Beverage Control Act.

9 5. Compensation for the purposes of this provision shall be the
10 fair market value of the party losing its distribution rights with
11 respect to the beer within that specific territory. Fair market
12 value shall be determined as set forth in Section 3-111 of this
13 title and shall take into account all aspects of brand valuation,
14 including, but not limited to:

- 15 a. the diminished value of the distribution of one
16 version of beer as a consequence of the subsequent
17 introduction of the other version,
- 18 b. the expected annual sales and earnings of the
19 distributor agreement,
- 20 c. the length of time the existing distributor held in
21 the distribution sales agreement, and
- 22 d. any other relevant items of value, such as goodwill
23 and going concern.

1 E. If a brewer, whether directly or through an affiliate,
2 maintained one or more licenses to distribute low-point beer in this
3 state prior to October 1, 2018, then up to two of the brewer's low-
4 point beer distribution licenses shall automatically convert to beer
5 distribution licenses on October 1, 2018, and such brewer shall be
6 permitted to continue to distribute beer in two territories within
7 which it currently distributes without the appointment of a
8 distributor for such period of time as determined by the Legislature
9 and consistent with the Oklahoma Constitution ~~of the State of~~
10 ~~Oklahoma~~; provided however, if such distributor shall not be
11 permitted to distribute beer outside of the territory unless it
12 enters into a distributor agreement with an independent licensed
13 distributor as provided for in paragraph 1 of subsection B of this
14 section. This ~~section~~ subsection shall not apply to small brewers
15 that have elected to self-distribute.

16 F. If, on October 1, 2018, a licensed distributor possesses
17 inventory of a brand that it is no longer authorized to distribute
18 within this state, such inventory shall be sold to a licensed
19 distributor authorized to distribute such brand, at a price not to
20 exceed the total of the actual purchase price of the selling
21 distributor plus the cost of inbound and outbound shipping to the
22 purchasing distributor. The provisions of this ~~paragraph~~ subsection
23 shall not apply to inventory purchased on or after September 15,
24 2018.

1 G. No brewer or small brewer licensee shall require a licensed
2 distributor to accept delivery of any beer that such licensed
3 distributor did not order. A licensed distributor may refuse
4 delivery of any unordered product without penalty or retaliation.

5 SECTION 3. AMENDATORY 37A O.S. 2021, Section 3-116, as
6 amended by Section 1, Chapter 238, O.S.L. 2023 (37A O.S. Supp. 2025,
7 Section 3-116), is amended to read as follows:

8 Section 3-116. A. Any manufacturer or subsidiary of a
9 manufacturer who markets its products solely through a subsidiary or
10 subsidiaries, a distiller, rectifier, bottler, winemaker or importer
11 of alcoholic beverages, bottled or made in a foreign country, either
12 within or without this state, may sell such brands or kinds of
13 alcoholic beverages to every licensed wine and spirits wholesaler
14 who desires to purchase the same, on the same price basis and
15 without discrimination or inducements, and shall further be required
16 to sell such beverages only to those persons licensed as wine and
17 spirits wholesalers.

18 B. The provisions of subsection A of this section shall not
19 apply to a brewer except as otherwise ~~stated herein~~ provided for in
20 this section. In the event a brewer, who has entered into
21 territorial distribution agreements with beer distributors in this
22 state, markets wine and spirits products in this state either itself
23 or through a subsidiary or affiliate, then such brewer, subsidiary,
24 or affiliate may elect to designate beer distributors, with whom it

1 has entered into territorial distribution agreements, as its
2 designated wholesalers for any wine and spirit products to be sold
3 by the brewer, subsidiary, or affiliate within the beer
4 distributors' existing territories, provided such beer distributors
5 ~~must~~ shall also hold a wine and spirits wholesaler license. In such
6 event, the beer distributors shall be deemed designated wholesalers
7 for the territory with respect to the designated products.
8 Provided, in the event a beer distributor has not obtained a wine
9 and spirits license, has elected not to sell wine and spirits in its
10 respective territory or, in the brewer's commercially reasonable
11 discretion, is not suitable to sell wine and spirits in its
12 respective territory, then the brewer, subsidiary, or affiliate may
13 extend the territory of an existing beer distributor, with whom it
14 has entered into a territorial distribution agreement and who holds
15 a wine and spirits wholesaler license, for the territory. For
16 purposes of this subsection only, the phrase "subsidiary or
17 affiliate" shall mean any entity that the brewer controls, is
18 controlled by, or is under common control with, during the time that
19 the wine and spirits brands are offered for sale in this state, and
20 "control" shall mean ownership of more than fifty percent (50%) of
21 the voting securities or assets of, or the ability to dictate the
22 material operations of, another entity. If the brewer, subsidiary,
23 or affiliate sells the wine and spirits brands to a manufacturer
24 other than one that would otherwise fall within the provisions of

1 this subsection, then the rights provided in this subsection which
2 relate to the wine and spirits brands shall terminate. The rights
3 provided to beer distributors pursuant to Section 3-111 of this
4 title shall not be extended to apply to the wine or spirits brands
5 distributed pursuant to this subsection.

6 C. No manufacturer or nonresident seller shall require a wine
7 and spirits wholesaler to purchase any alcoholic beverages or any
8 goods, wares, or merchandise as a condition to the wine and spirits
9 wholesaler obtaining or being entitled to purchase any alcoholic
10 beverages. No licensed manufacturer or nonresident seller shall
11 require a wine and spirits wholesaler to accept delivery of any
12 alcoholic beverages that such wine and spirits wholesaler did not
13 order. A wine and spirits wholesaler may refuse delivery of any
14 unordered alcoholic beverages without penalty or retaliation.

15 ~~Violation~~ A violation of this ~~section~~ subsection shall be a
16 misdemeanor. Conviction ~~hereunder~~ of any such violation shall
17 automatically revoke the violator's license.

18 D. In the event a manufacturer or nonresident seller has not
19 designated a designated wholesaler to sell ~~its~~ such manufacturer's
20 or nonresident seller's products in the state, the nondesignated
21 products shall be posted ~~in accordance with the~~ as following:

22 1. On the first business day of each month, the manufacturer
23 shall post with the ~~ABLE~~ Alcoholic Beverage Laws Enforcement (ABLE)
24 Commission the price of all wine and spirits ~~it~~ such manufacturer

1 proposes to offer for sale to licensed wine and spirit wholesalers
2 in this state. All prices shall become effective on the first
3 business day of the following month and shall remain in effect and
4 unchanged for a period ~~of~~ not less than one (1) month. The posting
5 shall be submitted on a form approved by the ABLE Commission and
6 shall identify the brand, size, alcohol content, and price of each
7 item intended to be offered for sale. No change or modification of
8 the posted price shall be permitted except upon written permission
9 from the ABLE Commission based on good cause shown;

10 2. When a new item is registered, or an old item is
11 discontinued, or any change is made by a manufacturer or nonresident
12 seller as to price, age, proof, label, or type of bottle of any item
13 offered for sale in this state, such new item, discontinued item, or
14 change in price, age, proof, label, or type of bottle of any item
15 shall be listed separately on the cover page of the price schedule
16 and, in the case of prices changed, shall reflect both the old and
17 the new price of the item changed. All new items and changes as to
18 age, proof, label, or type of bottle in which any item is offered
19 for sale shall first be submitted in writing to the ABLE Commission
20 for approval under such requirements as it may deem proper.
21 Approval or disapproval of price changes shall not be required if
22 filed in conformity with the provisions of this subsection.

23 a. In addition to the foregoing requirements, the
24 manufacturer shall, at the same time, on regular forms

1 provided by the ABLE Commission, re-register all ~~items~~
2 ~~of alcoholic beverage which~~ beverages that the
3 manufacturer had registered and offered for sale in
4 this state during the previous price period.

5 b. A short form of price posting may be permitted by the
6 ABLE Commission for any price period in which no new
7 item is offered or old item discontinued, or change is
8 made in the price, age, proof, label, or type of
9 bottle of any item offered by any manufacturer. Such
10 short form shall contain only such statements as the
11 Director of the ABLE Commission may require or permit;

12 3. The brand name, size, proof, and type of alcoholic beverages
13 ~~must~~ shall be shown on each container sold in this state;

14 4. No brand of alcoholic beverage shall be listed on a price
15 list or posting in more than one place, or offered for sale by more
16 than one method, or at more than one price, ~~except as provided~~
17 hereafter unless a manufacturer:

18 a. ~~a manufacturer~~ who has posted F.O.B. prices from a
19 foreign shipping point ~~shall~~ also ~~list~~ lists the same
20 ~~item(s)~~ items at ~~an~~ no more than one United States
21 F.O.B. point ~~within the continental United States.~~
22 ~~Only one United States F.O.B. point shall be~~
23 ~~permitted, and~~
24

1 b. ~~a manufacturer may list~~ lists on their price list or
2 ~~posting~~ posts an item of specific size that may be
3 packaged in more than one type or design of container,
4 provided that the containers being offered have been
5 approved by the ABLE Commission;

6 5. The manufacturer shall sell to the wine and spirits
7 wholesalers all items of wine and spirits at the current posted
8 price in effect on the date of the shipment as shown on the
9 manifest, bill of lading, or invoice;

10 6. A full and correct copy of each such price registration
11 shall be transmitted to wine and spirits wholesalers on the same day
12 such prices are filed with or mailed to the ABLE Commission. Proof
13 of such mailing or delivery shall be furnished to the ABLE
14 Commission by the manufacturer with the price registration or upon
15 request;

16 7. The sale of, or offer to sell, ~~of any item of~~ alcoholic
17 beverage by a manufacturer to a wine and spirits wholesaler at a
18 price not in compliance with the price posted with the ABLE
19 Commission may be deemed a violation; and

20 8. This subsection shall not apply to a manufacturer that has
21 designated a wine and spirits wholesaler to sell its product in the
22 state or a brewer who has appointed a beer distributor as a
23 designated wholesaler pursuant to subsection B of this section, with
24 respect to designated products.

1 E. Every wine and spirits wholesaler is authorized:

2 1. To ship orders to retailers non-sequentially; and

3 2. To fill orders non-sequentially only on products that have
4 been designated as being in short supply.

5 As used in this subsection, "short supply" means those
6 individual brand labels of alcoholic beverages normally supplied by
7 the manufacturer or manufacturers that, for whatever reason, lack
8 sufficient supply to fully satisfy the demand of the Oklahoma retail
9 ~~and/or~~ or on-premises market.

10 F. Upon the manufacturer notifying the wholesalers of products
11 designated as short supply, the wholesaler shall also then notify
12 the ABLE Commission as soon as practical.

13 G. The ABLE Commission shall publish a list of every product
14 designated as short supply by the Director on its website every
15 thirty (30) days. After thirty (30) days, the wholesaler shall send
16 an updated notice to the ABLE Commission if the product or products
17 are in short supply. The ABLE Commission shall remove those
18 products if notification is not received. These activities shall
19 not constitute a violation of this title or any rule promulgated
20 under this title.

21 SECTION 4. This act shall become effective November 1, 2026."
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1 Passed the Senate the 29th day of April, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives

1 ENGROSSED HOUSE
2 BILL NO. 1381

By: Dempsey of the House

3 and

4 Daniels of the Senate
5
6

7 An Act relating to alcoholic beverages; amending 37A
8 O.S. 2021, Section 1-107, which relates to the powers
9 and duties of the Oklahoma Alcoholic Beverage Laws
10 Enforcement Commission; requiring an annual report be
11 made available to certain individuals; requiring
12 report be made available online; and providing an
13 effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 5. AMENDATORY 37A O.S. 2021, Section 1-107, is
16 amended to read as follows:

17 Section 1-107. A. The ABLE Commission shall have the following
18 powers and duties:

19 1. To supervise, inspect and regulate every phase of the
20 business of manufacturing, importing, exporting, transporting,
21 storing, selling, distributing and possessing for the purpose of
22 sale, all alcoholic beverages which shall be necessary and proper to
23 carry out the purposes of the Oklahoma Alcoholic Beverage Control
24 Act;

1 2. To promulgate rules, in the manner herein provided, to carry
2 out the purposes of the Oklahoma Alcoholic Beverage Control Act;

3 3. To have the sole authority to issue any license provided for
4 in the Oklahoma Alcoholic Beverage Control Act and except as
5 provided in Sections ~~101 and 102 of this act~~ 4-104 and 4-105 of this
6 title with respect to cities, towns and counties, and except as may
7 be provided under Title 68 of the Oklahoma Statutes with respect to
8 the Oklahoma Tax Commission, no other agency, instrumentality or
9 political subdivision of this state shall be authorized to issue any
10 license or permit allowing any licensee to engage in any activity
11 covered by the Oklahoma Alcoholic Beverage Control Act anywhere
12 within the State of Oklahoma;

13 4. To refuse to issue any license provided for in the Oklahoma
14 Alcoholic Beverage Control Act for cause provided for in the
15 Oklahoma Alcoholic Beverage Control Act;

16 5. To revoke or suspend, for cause after hearing, any license
17 issued under the authority of the Oklahoma Alcoholic Beverage
18 Control Act;

19 6. To prescribe the forms of all reports which it deems
20 necessary in administering the Oklahoma Alcoholic Beverage Control
21 Act;

22 7. To fix standards not in conflict with those prescribed by
23 any law of this state or of the United States, to secure the use of
24

1 proper ingredients and methods of manufacture and dispensing of
2 alcoholic beverages;

3 8. To make seizures of alcoholic beverages manufactured, sold,
4 possessed, imported or transported in violation of the Oklahoma
5 Alcoholic Beverage Control Act, and apply for the confiscation
6 thereof whenever required by the Oklahoma Alcoholic Beverage Control
7 Act, and cooperate in the prosecution of offenders before any court
8 of competent jurisdiction;

9 9. To submit to the Governor and members of the State
10 Legislature annual or semiannual reports upon request of the
11 Governor;

12 10. To prepare an annual report by February 28 of each year
13 listing the number of licenses revoked or suspended and the basis
14 for the action, including all complaints submitted to the ABLE
15 Commission with the complainant's name and organization. The report
16 shall also include the number of tickets written, the total amount
17 of the tickets, and the total amount penalized. The report shall be
18 delivered to the Governor, Speaker of the Oklahoma House of
19 Representatives and President Pro Tempore of the Oklahoma State
20 Senate, and made public on the ABLE Commission website;

21 11. To inspect or cause to be inspected any premises where
22 alcoholic beverages are manufactured, stored, distributed, sold,
23 dispensed or served;

1 ~~11.~~ 12. In the conduct of any hearing authorized to be held by
2 the ABLE Commission:

- 3 a. to examine or cause to be examined, under oath, any
4 person,
- 5 b. to examine or cause to be examined books and records
6 of any licensee,
- 7 c. to hear testimony and take proof material for the ABLE
8 Commission's information and the discharge of its
9 duties hereunder,
- 10 d. to administer or cause to be administered oaths, and
- 11 e. to issue subpoenas for the attendance of witnesses and
12 the production of books or records which shall be
13 effective in any part of the state. Any district
14 court or any judge thereof, either in term or
15 vacation, may by order duly entered require the
16 attendance of witnesses and the production of relevant
17 books or records subpoenaed by the ABLE Commission,
18 and the court or judge may compel obedience to the
19 order by proceedings for contempt;

20 ~~12.~~ 13. To prescribe the kind and size of retail containers of
21 alcoholic beverages which may be purchased, possessed and sold by a
22 licensee;

23 ~~13.~~ 14. To prescribe by rule, in addition to those herein
24 required, the kinds of records to be kept and reports to be rendered

1 by licensees, and the information to be shown therein; provided,
2 that the period for which all such records and reports be retained
3 shall not be less than five (5) years;

4 ~~14.~~ 15. To gather, compile and print such statistical data as
5 may in the opinion of the ABLE Commission be needed or useful, and
6 prescribe charges or fees to be collected from any person or company
7 to whom such data shall be provided. No reports shall contain sales
8 information by name or license number;

9 ~~15.~~ 16. To educate persons employed by licensees to sell or
10 serve alcoholic beverages as to the provisions of Article XXVIII-A
11 of the Oklahoma Constitution and the Oklahoma Alcoholic Beverage
12 Control Act, with emphasis on recognizing and preventing
13 intoxication and particular emphasis on those provisions prohibiting
14 the selling or serving of alcoholic beverages to minors. The ABLE
15 Commission may contract with one or more entities, including but not
16 limited to the Oklahoma Department of Mental Health and Substance
17 Abuse Services, to perform the duties specified in this paragraph;

18 ~~16.~~ 17. To purchase motor vehicles necessary for use in its
19 operations. Such motor vehicles shall not be required to have any
20 type of identifying marking thereon;

21 ~~17.~~ 18. To purchase insurance on the motor vehicles owned and
22 operated by the ABLE Commission in accordance with statutory
23 provisions, subject to the approval of the Risk Management
24

1 Administrator as provided for in Section 85.58A of Title 74 of the
2 Oklahoma Statutes;

3 ~~18.~~ 19. To approve or reject any official bond required to be
4 filed with the ABLE Commission; and

5 ~~19.~~ 20. To exercise all other powers and duties conferred by
6 the Oklahoma Alcoholic Beverage Control Act, and all powers
7 incidental, convenient or necessary to enable it to administer or
8 carry out any of the provisions of the Oklahoma Alcoholic Beverage
9 Control Act.

10 B. The ABLE Commission shall promulgate rules, pursuant to the
11 Administrative Procedures Act, to carry out the purposes of the
12 Oklahoma Alcoholic Beverage Control Act.

13 SECTION 6. This act shall become effective November 1, 2025.

14 Passed the House of Representatives the 13th day of March, 2025.

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Presiding Officer of the House
of Representatives

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Passed the Senate the _____ day of _____, 2025.

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Presiding Officer of the Senate

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